

Telemarketing compliance

What the law requires, what RoboCall AI does for you, and what it does not

24 September 2026 · United States · Rules checked against 47 C.F.R. § 64.1200

This is not legal advice. It is an engineering briefing written to tell you which obligations the software handles, which it cannot, and where the sharp edges are. It was accurate to the best of our reading on the date above. Telemarketing law is unusually volatile right now — a federal appeals court rewrote a core consent rule in February 2026 and the FCC is mid-rulemaking on another as this is written. **Have a lawyer review your specific programme before you dial anyone who is not you.**

1 The distinction everything else hangs on

Before any other question: **is the call telemarketing, or is it informational?** The same recording, the same software and the same list attract very different rules depending on the answer.

Type	What it means	Roughly
Telemarketing	The call advertises or promotes anything, or encourages buying. A sale, an offer, a new product, a discount.	Heavily regulated. Consent required, automated opt-out required.
Informational	Purely transactional or relational with no advertising content at all. An appointment reminder, a delivery notice, a school closure, an outage alert.	Still regulated, but materially lighter.

Mixed-purpose calls count as telemarketing. An appointment reminder that closes with *"and ask about our spring special"* is an advertisement. This catches people out constantly: one promotional sentence moves the entire call into the stricter regime. The furniture-store sale announcement this app was built for is squarely telemarketing.

2 Consent

For prerecorded or artificial-voice **telemarketing** calls, the FCC's long-standing rule has required **prior express written consent**: a signed agreement, clearly disclosing that the person will receive automated or prerecorded telemarketing calls, naming the number to be called, and stating that agreeing is not a condition of buying anything. An existing business relationship is **not** consent for this kind of call.

That rule is now genuinely unsettled. In *Bradford v. Sovereign Pest Control of TX, Inc.* (25 February 2026) the Fifth Circuit held that the statute *"requires only 'prior express consent,' whether oral or written"* and rejected the FCC's written-consent requirement. Two things about that decision matter enormously:

- It binds only the **Fifth Circuit** — federal courts in Texas, Louisiana and Mississippi. Elsewhere the FCC's written-consent framework still governs.
- Your recipients are not necessarily in the Fifth Circuit, and where a suit can be brought does not simply follow your own address.

Building a calling programme on top of a circuit split is a bet, not a compliance strategy. **Collecting proper written consent is the option that is defensible everywhere**, costs nothing extra to implement, and does not need re-litigating if the split resolves the other way. Document what each person agreed to, when, and by what means — and keep it, because in a dispute the burden of proving consent falls on you.

3 The rules that apply to the call itself

These come from 47 C.F.R. § 64.1200 and apply to prerecorded and artificial-voice calls. The right-hand column is the part that matters operationally: whether this software does it for you.

Requirement	Rule	Handled by the app?
Identify yourself at the start of the message, by your registered business name.	64.1200(b)(1)	Yes. The Business name in Settings is prepended to every script automatically.
Give a telephone number that can be called to make a do-not-call request. Not a 900 number.	64.1200(b)(2)	Yes. The Opt-out callback number is read aloud at the end of every call.
Provide an automated, interactive voice- or key-press-activated opt-out mechanism , with brief instructions, within two seconds of the identification .	64.1200(b)(3)	Partly, and only in webhook mode. See section 4 — this is the significant gap.
Call only between 8 a.m. and 9 p.m. local time at the called party's location .	64.1200(c)(1)	Yes. Enforced per recipient from their area code, and the default window (09:00–20:00) is deliberately tighter than the rule.
Scrub against the National Do Not Call Registry .	64.1200(c)(2)	No. You must subscribe separately and import. The app has no registry access.
Maintain an internal do-not-call list and honour requests within ten business days .	64.1200(d)(3)	Partly. The list exists and is screened at dial time. Requests that arrive by voicemail or email are invisible to it — you enter those.
Keep a written do-not-call policy , available on demand, and train anyone involved.	64.1200(d)(1)–(2)	No. This is a document you write.
Transmit caller ID.	64.1200(d)(4)	Yes , via Telnyx, using the number you own.
Retain do-not-call requests for five years .	64.1200(d)(6)	Partly. Records persist in the local database; backing it up is on you.

4 Two gaps you need to know about

The automated opt-out is unavailable in direct mode

The rule is explicit. A prerecorded telemarketing call must *"provide an automated, interactive voice- and/or key press-activated opt-out mechanism for the called person to make a do-not-call request, including brief explanatory instructions on how to use such mechanism, within two (2) seconds of providing the identification information"*.

Direct mode cannot do this. The keypress has to be delivered back to this server, and in direct mode nothing is reachable from the internet — that is the whole reason direct mode can run on a laptop. The spoken *call this number to be removed* line satisfies the separate callback-number requirement at (b)(2), but it is not the automated mechanism (b)(3) demands.

In plain terms: as configured today, this application is suitable for informational calls and for testing. **Running a telemarketing campaign from direct mode is very likely unlawful**, however good the consent behind it. Switching on webhook mode — a public HTTPS address in Settings — enables the press-9 mechanism.

Even in webhook mode, the timing is wrong

The rule puts the opt-out **within two seconds of the identification** — that is, at the very top of the call, right after you say who you are. The application currently appends *"To be removed from this list, press 9 now"* to the **end** of the script, after the message body. The mechanism works, but a recipient has to sit through the whole advertisement to reach it, which is precisely what the placement rule exists to prevent.

This is a small code change — move the opt-out sentence ahead of the message body in the script builder — and it should be made before any real telemarketing campaign. It is listed here rather than quietly fixed because it changes what every recipient hears, and that is your call to make, not ours.

5 State law, which is often stricter

Federal law is a floor, not a ceiling. States layer their own rules on top, and several are considerably tougher than the TCPA. Recurring themes worth checking for every state you call into:

- **Narrower calling hours** than the federal 8 a.m.–9 p.m., and in some states no calling at all on Sundays or holidays.
- **Their own do-not-call registries**, separate from the national one and separately subscribed.
- **Registration or bonding** as a telemarketer before you may call residents at all.
- **Private rights of action with their own damages**, sometimes with a lower bar to suit than the federal statute — Florida's Telephone Solicitation Act is the most-litigated example.

The app's calling window is a single global setting applied in each recipient's local time. It does not model per-state rules. If you call into a state with tighter hours, set the global window to the **strictest** one that applies to your list.

6 What getting it wrong costs

The TCPA carries a **private right of action**, and this is the heart of the risk. Statutory damages run **\$500 per call**, trebled to **\$1,500 per call** where the violation is willful or knowing — with no cap, and no need for the plaintiff to show any actual harm.

Per *call*, multiplied by a list, is what makes this a class-action magnet rather than a parking ticket. A single bad thousand-number campaign is a **\$500,000** exposure before anyone argues willfulness. The FCC can also pursue forfeitures separately, and the FTC's Telemarketing Sales Rule (16 C.F.R. Part 310) is a further regime with its own penalties.

This is also why the engineering choices in this app lean conservative — a tighter calling window than required, a modest default pace, screening at dial time so a late opt-out is honoured rather than queued behind a list that was built earlier.

7 Before your first real campaign

#	Do this
1	Decide honestly whether your call is telemarketing. If there is any promotional content at all, it is.
2	Have a lawyer review the programme — consent language, script, list provenance, and the states you are calling into.
3	Collect and store written consent, with a record of what was agreed, when, and how. Assume you will have to prove it.
4	Subscribe to the National Do Not Call Registry and scrub your list. Check state registries too.
5	Write the do-not-call policy. It has to exist on paper and be available on request.
6	Turn on webhook mode and move the opt-out line to the top of the script (section 4).
7	Set the calling window to the strictest state on your list, not the federal limit.
8	Call yourself first and listen to the whole thing, start to finish, as a recipient would.
9	Back up the database. Do-not-call records have to survive five years.

A note on how quickly this ages. Since January 2025 this area has seen a core consent rule vacated, a federal appeals court split from the FCC on written consent (February 2026), and an FCC rulemaking on consent revocation still unresolved as this is written — with a revocation rule currently slated for January 2027 and proposed revisions circulated on 9 September 2026. **Treat every citation here as a starting point to verify, not a settled answer**, and re-check before each campaign rather than assuming this document is still current.